

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

SASHA-RENA SUTHERLAND,

Plaintiff,

-against-

**Index No:
Summons**

**THE CITY OF NEW YORK,
POLICE OFFICER WAYNE HAYDEN
SHEILD#: 1728 AND JOHN/JANE DOES
1-5, OF THE 50TH COMMAND**

Defendants.

X

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the Plaintiff a copy of your answer, or if the complaint is served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of this date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Bronx County as the place of venue based on the place of occurrence.

Dated: New York, NY 10007
April 24, 2015

Ronald Paul Hart

Ronald P. Hart, Esq.
Attorney for the Plaintiff
225 Broadway, Suite 2815
New York, NY 10007
Tel: (212) 766-1443
Fax: (212) 766-0943
Email: ronaldphartesq@gmail.com

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

SASHA-RENA SUTHERLAND,

Plaintiff,

-against-

**Index No:
VERIFIED
COMPLAINT**

**THE CITY OF NEW YORK,
POLICE OFFICER WAYNE HAYDEN
SHEILD#: 1728 AND JOHN/JANE DOES
1-5, OF THE 50TH COMMAND,**

Defendants.

X

NOW COMES the Plaintiff, **SASHA-RENA SUTHERLAND**, by and through his attorney, **RONALD P. HART, P.C.**, as and for his complaint against the Defendants, and respectfully shows to this court and allege as follows:

PARTIES:

1. That the Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinfter "Plaintiff"), is presently a resident of the City and State of New York, residing in Bronx County.
2. At the time of the incident, the Plaintiff was a resident of the City and State of New York and County of Bronx.
3. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendants Police Officer **WAYNE HAYDEN SHIELD#: 17268** and Police Officer **JOHN AND/OR JANE DOES 1-5 OF THE 50TH COMMAND**.
5. Upon information and belief, at all times hereinafter mentioned, and on or prior to June 5th, 2014, Defendant, **THE CITY OF NEW YORK**, as a Police Officer, employed Defendants, Police Officer **WAYNE HAYDEN SHIELD#: 17268** and Police Officer **JOHN AND/OR JANE DOES 1-5, OF THE 50TH COMMAND**.
6. This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil rights Acts, Title 42 of the United Code, Section 1983, 1981, 1988, 1985(3) et seq. and state law for malicious prosecution, abuse of process, negligent infliction of emotional distress, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.
7. This action also arises under the rights under the Constitution and laws of the State of New York.
8. Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense State law, the statutes, ordinances, regulations, customs and usages of the State of New

York, the **CITY OF NEW YORK** and the County of Kings, and under the authority of their office as police officers of said State, City and County.

9. The amount in controversy is \$75,000 exclusive interest.

PENDANT STATE CLAIMS:

10. The notice of Plaintiff's claim for damages for false arrest, violation of Civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the 25th day of February 2015.
11. That more than 30 days have elapsed since the Notice of Claim has been served upon Defendants **CITY OF NEW YORK** and other defendants and said defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SASHA-RENA SUTHERLAND
FALSE ARREST AND FALSE IMPRISONMENT:

12. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-11 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
13. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, NY 10471.

14. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.
15. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to client's distress calls.
16. In the middle of the verbal argument Ms. Odom slapped/punched Plaintiff multiple times as well as kicked her.
17. There was an eyewitness to Ms. Odom's assault of Plaintiff.
18. When the police arrived, Ms. Odom's employees sided with her and the police arrested Ms. Sutherland even though she sustained physical injuries consisting of swelling and redness from the encounter.
19. Following Ms. Sutherland's arrest, she was arraigned on a DAT on September 18th, 2013.
20. Plaintiff endured at least a year and a half of being maliciously prosecuted until her case was dismissed on December 3rd, 2014.
21. That the Defendants, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees.
22. That the aforesaid occurrence, to wit: false arrest and imprisonment of Plaintiff, resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of Plaintiff.

23. That the acts of the Defendants, their agents, servants and employees in failing to properly discipline, hire and train their employees, agents and servants presents a clear and present danger to the citizens of the City and State of New York.
24. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered sick, sore, lame and so remains by the actions of the Defendants, their agents, servants and employees.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SASHA-RENA SUTHERLAND
NEGLIGENCE IN TRAINING AND SUPERVISING:

25. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-24 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
26. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, NY 10471.
27. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.
28. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to client's distress calls.
29. In the middle of the verbal argument Ms. Odom slapped/punched Plaintiff multiple times as well as kicked her.
30. There was an eyewitness to Ms. Odom's assault of Plaintiff.

31. When the police arrived, Ms. Odom's employees sided with her and the police arrested Ms. Sutherland even though she sustained physical injuries consisting of swelling and redness from the encounter.
32. Following Ms. Sutherland's arrest, she was arraigned on September 18th, 2013.
33. Plaintiff endured at least a year and a half of being maliciously prosecuted until her case was dismissed on December 3rd, 2014.
34. That the Defendant, **THE CITY OF NEW YORK**, their agents, servants and employees, carelessly and recklessly failed to properly train and supervise their employees, in particular, the employees named Defendants Police Officer **WAYNE HAYDEN SHIELD #: 17268** and **JOHN/JANE DOES 1-5, of the 50th Command** in that they failed to train their employees to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonable, prudent police officers; failed to give them proper instruction as to their deportment, behavior, and conduct as representatives of their employers; and, in that the Defendants, their agents, servants and employees were otherwise reckless, careless and negligent in the performance of their duties.
35. That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body there-from were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.
36. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SASHA-RENA SUTHERLAND
NEGLIGENCE IN PERFORMANCE OF DUTIES:

37. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-36 of this Complaint as though fully plead and re-alleged in their entirety below.
38. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, NY 10471.
39. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.
40. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to client's distress calls.
41. In the middle of the verbal argument Ms. Odom slapped/punched Plaintiff multiple times as well as kicked her.
42. There was an eyewitness to Ms. Odom's assault of Plaintiff.
43. When the police arrived, Ms. Odom's employees sided with her and the police arrested Ms. Sutherland even though she sustained physical injuries consisting of swelling and redness from the encounter.
44. Following Ms. Sutherland's arrest, she was arraigned on September 18th, 2013.
45. Plaintiff endured at least a year and a half of being maliciously prosecuted until her case was dismissed on December 3rd, 2014.

46. That the Defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees; and in that the Defendants, their agents, employees and servants were otherwise negligent, careless, and reckless.
47. That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body these from, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.
48. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SASHA-RENA SUTHERLAND
FOR MALICIOUS PROSECUTION

49. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-48 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

50. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, NY 10471.
51. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.
52. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to client's distress calls.
53. In the middle of the verbal argument, Ms. Odom slapped/punched Plaintiff multiple times as well as kicked her.
54. There was an eyewitness to Ms. Odom's assault of Plaintiff and the police were duly informed of the eyewitness identity such that the charges should have never been brought.
55. When the police arrived, they arrested Ms. Sutherland even though she had a witness and sustained visible physical injuries consisting of swelling and redness to her face from the encounter.
56. Following Ms. Sutherland's arrest, she was arraigned on September 18th, 2013.
57. Plaintiff was forced to endure at least a year and a half of being maliciously prosecuted on criminal charges the police knew or should have known were bogus because she sustained physical injuries, and her eyewitness contradicted Ms. Odom's contentions in their entirety.

58. Plaintiff's was forced to hire private counsel to dismiss the charges after the case was on the trial calendar for more than a year with the case being dismissed on December 3rd, 2014.
59. That a result of Defendant's malicious prosecution, Plaintiff, lost monies, has been damaged in her mind and body having many sleepless nights and has otherwise been traumatized.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SASHA-RENA SUTHERLAND
FOR NEGLIGENCE INFLICTION OF EMOTIONAL DISTRESS:

60. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-59 of this Complaint as though fully plead and re-alleged in their entirety below.
61. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, New York 10471.
62. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.
63. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to client's distress calls.
64. In the middle of the verbal argument without any warning, Ms. Odom slapped/punched Plaintiff multiple times as well as kicked her.
65. There was an eyewitness to Ms. Odom's assault of Plaintiff.

66. When the police arrived, they arrested Ms. Sutherland even though she sustained physical injuries consisting of swelling and redness from the encounter and told them she had an eyewitness who completely refuted the baseless claim.
67. Following Ms. Sutherland's arrest, she was arraigned on a September 18th, 2013.
68. Plaintiff endured at least a year and a half of being maliciously prosecuted until her case was dismissed on December 3rd, 2014.
69. That Defendants conduct in falsely arresting Plaintiff went beyond the bound of human decency and was utterly outrageous conduct that can be accepted in a civilized society because it was Defendant should have been arrested as Plaintiff was the one who displayed visible injuries and had an eyewitness who refuted the claim, was injured in mind and body, still suffers and upon information and belief will continue to suffer great mental pain, because of Defendants' actions.
70. That due to defendants' negligent, intentional, and reckless conduct of ignoring Plaintiff's innocence, Plaintiff was needlessly put through the criminal justice system. That this arrest went beyond what is to be considered reasonable and tolerable in a civilized a society and shocks the conscious of the ordinary citizen.
71. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distress and so remains so damaged.
72. Plaintiff demands judgment on the complaint for his injuries suffered herein.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SASHA-RENA SUTHERLAND
FOR INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS:

73. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-72 Complaint as though fully plead and re-alleged in their entirety below.
74. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, NY 10471.
75. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.
76. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to client's distress calls.
77. In the middle of the verbal argument Ms. Odom slapped/punched Plaintiff multiple times as well as kicked her.
78. There was an eyewitness to Ms. Odom's assault of Plaintiff.
79. When the police arrived, Ms. Odom's employees sided with her and the police arrested Ms. Sutherland even though she sustained physical injuries consisting of swelling and redness from the encounter.
80. Following Ms. Sutherland's arrest, she was arraigned on September 18th, 2013.
81. Plaintiff endured at least a year and a half of being maliciously prosecuted until her case was dismissed on December 3rd, 2014.
82. That due to Defendants' outrageous conduct, Plaintiff was injured in mind and body, still suffers and upon information and belief will continue to suffer great mental pain, by the actions of the Defendants.

83. That due to defendants' intentional and reckless conduct of completely ignoring Plaintiff's claim of innocence, Plaintiff was needlessly put through the system. That this arrest went beyond what was to be considered reasonable and tolerable in a civilized society and shocks the conscious of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distress and so remains so damaged.
84. Plaintiff demands judgment on the complaint for his injuries suffered herein.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SASHA-RENA SUTHERLAND
FOR CIVIL RIGHT ACTION 42 USC §

85. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-84 of this Complaint as though fully plead and re-alleged in their entirety below.

Venue and Jurisdiction

86. The jurisdiction is founded upon the existence of a Federal Question.
87. The amount in controversy exceeds \$75,000.00 exclusive of interest.
88. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States 42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.

89. That Jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and (4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiff by the First, Fourth, and Fourteenth amendments to the Constitution of the United State 42 U.S.C. § 1983, 1981, 1985 (3), 1988 and arising under the federal constitutional laws and statues as well as the laws, statues, and constitution of the State of New York.
90. The Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § 1981, 1983, 1985 (3), and 1988 and the Constitution of the State of New York.
91. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, NY 10471.
92. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.
93. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to a client's distress calls.
94. In the middle of the verbal argument, Ms. Odom slapped/punched Plaintiff multiple times as well as kicked her.
95. There was an eyewitness to Ms. Odom's assault of the Plaintiff.

96. When the police arrived, they arrested Ms. Sutherland even though she sustained physical injuries consisting of swelling and redness from the encounter and had an eyewitness who refuted Ms. Odom's claims.
97. Following Ms. Sutherland's arrest, she was arraigned on September 18th, 2013.
98. Plaintiff endured at least a year and a half of being maliciously prosecuted until her case was dismissed on December 3rd, 2014.
99. Defendant, City of New York and Police Officer Wayne Hayden in engaging in the above conduct of falsely arresting and imprisoning Plaintiff when she had visible injuries an eyewitness and there being no justification to do deprive her of her civil rights.
100. Defendant, Detective **JOHN/JANE DOES 1-5** and Police Officers, **JOHN AND/OR JANE DOES 1-5** deprived Plaintiff of his civil rights pursuant to 42 U.S.C.A. § 1983 acting in their capacities as police officers employed by Defendant **CITY OF NEW YORK**, said Defendants Police Officers were acting under the color of State law.
101. That the aforementioned misuse of authority and power by Defendants Police Officer **WAYNE HAYDEN SHIELD #: 17268** and **JOHN/JANE DOES 1-5, of the 50th Command** were egregious and shocking to the conscience.
102. As a direct result of this police misconduct, Plaintiff was caused to undergo the humiliation and indignities resulting from his unlawful confinement and a year and a half malicious prosecution against will and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

103. Such deprivation were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U. S.C.A § 1983 and the laws, ordinances and statues of the State of New York to wit:

- a. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained and then embarked on a campaign to maliciously prosecute Plaintiff without any right, privilege or any other legal grounds.
- b. Defendant acted pursuant to an official policy even though unwritten that they understood authorized them to pursue to groundless arrests without probable cause, and without justification because such conduct was condoned by the NYPD and City of New York.
- c. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
- d. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees
- e. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard

to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.

- f. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
- g. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.

104. As a result of the aforesaid defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the Jurisdictional limits of all lower courts.

105. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.

106. Probable cause or other legal privilege or grounds did not justify the arrest and imprisonment. Defendants their agents, servants and employees, acting under the color of law and under authority of their office as Police Officers for the city

falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.

107. That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.
108. That the Plaintiff demands attorney fees should prevail in his 42 USC Section 1983 claims against the individually named police officers and **CITY OF NEW YORK.**

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SASHA-RENA SUTHERLAND
CIVIL RIGHTS ACTIONS 42 USC § 1985 (3):

109. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-108 of this Complaint as though fully plead and re-alleged in their entirety below.
110. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, NY 10471.
111. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.
112. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to a client's distress calls.
113. In the middle of the verbal argument Ms. Odom slapped/punched Plaintiff multiple times as well as kicked her.
114. There was an eyewitness to Ms. Odom's assault of Plaintiff.

115. When white police officers arrived, they conspired among themselves to falsely arrest Ms. Sutherland even though she sustained physical injuries consisting of swelling and redness from this encounter.
116. Consequently Sutherland's was arrested and arraigned on September 18th, 2013.
117. That at all times hereinafter mentioned, that Defendants Police Officer **WAYNE HAYDEN SHIELD #: 17268** and **JOHN/JANE DOES 1-5, of the 50th Command** each of them, separately and in concert conspired for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the equal protection of the laws, or of equal privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York:
- a. The right of the Plaintiff to be secure in their persons and effects against unreasonable arrests, searches and seizures under the Fourth and Fourteenth Amendments of the Constitution of the United States; and
 - b. The right of the Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

118. That by reason of the aforesaid violations, conspiracy and false arrest, and false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive Plaintiff of her civil rights and attempted to compel her to abandon her rights and privileges as provided to her in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the **CITY OF NEW YORK**, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the Plaintiff thereof to be deprived of his rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

119. That by reason of the aforesaid violations, to wit the false arrest, false imprisonment caused by the Defendant who wrongfully deprived the Plaintiff and attempted to compel her abandon his rights and privileges as provided to her by the Constitution of the United States of America, and in the Constitution of the

and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

AS AND FOR THE NINTH CAUSE OF ACTION
ON BEHALF OF SASHA-RENA SUTHERLAND
FOR ATTORNEY FEES PURSUANT TO 42 USC SECTION 1988:

120. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-120 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
121. Should Plaintiff be victorious upon his claims, he intends to assert a claim for attorney fees on his federal claims pursuant to 42 USC section 1983, 1981, 1985 (3) et seq.

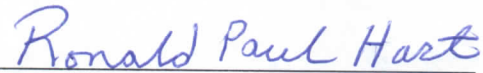
AS AND FOR THE TENTH CAUSE OF ACTION
ON BEHALF OF SASHA-RENA SUTHERLAND
FOR RACIAL DISCRIMINATION PURSUANT TO 42 USC SECTION
1981:

122. The Plaintiff, **SASHA-RENA SUTHERLAND**, hereby incorporates by reference each and every preceding paragraph 1-121 of this Complaint as though fully plead and re-alleged in their entirety below.
123. That on or about July 24th, 2013, Plaintiff, **SASHA-RENA SUTHERLAND** (Hereinafter "Plaintiff"), was at her place of employment located at 5901 Palisades Avenue, Bronx, NY 10471.
124. At approximately 8:35 A.M. Plaintiff, a home attendant, was at work when Harriet Odom, a home attendant from another agency, came to her job where an argument ensued.

125. The dispute was over a statement that Plaintiff made about Ms. Odom's lack of responsiveness to client's distress calls.
126. In the middle of the verbal argument Ms. Odom slapped/pinched Plaintiff multiple times as well as kicked her.
127. There was an eyewitness to Ms. Odom's assault of Plaintiff.
128. When the police arrived, the police arrested Ms. Sutherland even though she had an eyewitness to this incident and sustained visible physical injuries consisting of swelling and redness from the encounter.
129. Following Ms. Sutherland's arrest, she was arraigned on a DAT on September 18th, 2013.
130. Plaintiff endured at least a year and a half of being maliciously prosecuted until her case was dismissed on December 3rd, 2014.
131. That due to Defendants' outrageous conduct, Plaintiff was injured in mind and body, still suffers and upon information and belief will continue to suffer great mental pain, by the actions of the Defendants.
132. That due to defendants' intentional and reckless conduct of completely ignoring Plaintiff's claim of innocence, Plaintiff was needlessly put through the system. That this arrest went beyond what was to be considered reasonable and tolerable in a civilized society and shocks the conscious of the ordinary citizen. Plaintiff was injured in mind and bod, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distress and so remains so damaged.
133. Plaintiff demands judgment on the complaint for his injuries suffered herein.

134. That upon information and belief, the police do not treat other similarly situations involving persons who are not African or African Americans in the same manner that they treated the Plaintiff herein by negligently arresting Plaintiff without a proper and thoroughly investigation.
135. That by reason of the aforesaid violations, the Plaintiff requests the following relief:
- a. Compensatory damages in the sum, which exceeds the jurisdictional limits of all lower courts.
 - b. Punitive damages against the individually named Defendants in the sum, which exceeds the jurisdictional limits of all lower courts.
 - c. An award of reasonable attorney's feed, costs and disbursements;
 - d. Plaintiff requests a trial by jury of all issues involved in this complaint;
 - e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, NY 10007
April 24, 2015



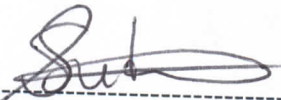
Ronald Paul Hart, Esq.
Ronald Paul Hart, P.C.
225 Broadway, Suite 2515
New York, NY 10007
Tel: (212) 766-1443
Fax: (212) 766-0943

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

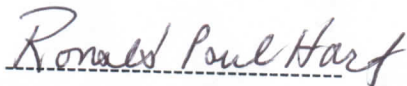
Sasha Sutherland, being duly sworn, hereby deposes and says that:

1. I am the Plaintiff in this action.
I am over eighteen years of age and reside in New York State.
2. I verify that the statements to my attorney are true to the best of my knowledge and belief.
3. All allegations made which are based upon information and belief are made after consultation with my attorney and on the basis of the information available to me at this time.
4. I further verify that I have read the foregoing Summons and Complaint and that I know the contents thereof; the same are true to my knowledge, except to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.



Plaintiff

Sworn to before me this
24th day of February 2015



Notary Public

RONALD PAUL HART
Notary Public, State of New York
No. 02HA4099783
Qualified in New York County
Commission Expires July 27, 2018 R. H.

**SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF BRONX**

INDEX NUMBER:

SASHA-RENA SUTHERLAND,

Plaintiff(s),

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER WAYNE HAYDEN
SHEILD#: 1728 AND JOHN/JANE DOES
1-5, OF THE 50TH COMMAND,**

Defendant (s),

SUMMONS AND COMPLAINT

**RONALD P. HART, ESQ.
Attorney(s) for Plaintiff
225 Broadway, Suite 2815
New York, N.Y. 10007
Tel. (212) 766-1443**

**To Attorney(s) for Defendant
Signature Rule 130-1.1-a)**

Service of a Copy of the Within Summons and Complaint is Hereby Admitted.

Dated: _____

Attorney(s) for Respondents

Counselor(s): Please Take Notice that a

NOTICE OF ENTRY that the within is a true copy of

NOTICE OF SETTLEMENT

that an order for _____ of which the within is a true copy will be presented for settlement to
the HON. _____ one of the justices of the within named Court at
on the _____ day of _____ 2015 at 9:30 A. M.

Dated:

To: